Suit Among Members of the Same Family/ Necessity of Earnest Efforts toward Compromise
Art. 151 in rel. to Art. 2035, Civil Code of the Philippines

- ***Hiyas Savings v. Acuna, G.R. NO. 154132. August 31, 2006, 500 S 514***
- ***Martinez v. Martinez, 461 S 562***
- ***Hontiveros v. RTC of Iloilo City, 309 S 340***
- ***Vda. De Manalo v. CA, 16 January 2001***

Family Solidarity

- Earnest efforts towards compromise
- Rules on Family Mediation
  - Between husband and wife
  - Between parents and children
  - Among other ascendants and descendants
  - Among brothers and sisters (full or half-blood)
  - Relatives within the 4th civil degree of consanguinity and affinity
  - Parties in a common law, dating, or sexual relationship, whether former or current
- Effect of failure to comply (earnest efforts towards compromise):
  - The case will be dismissed (condition precedent)
  - This is NOT a jurisdictional defect which would not authorize the courts to dismiss motu proprio (it must be invoked by the opposing party at the earliest possible opportunity - motion to dismiss or answer)